

25STCV15001 25STCV15001

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Division: Civil Law and Motion
Department: 506
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Case Number: 25STCV15001 Hearing Date: August 27, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

JOSE ORTIZ,

Plaintiff,

vs.

GENERAL MOTORS LLC,

Defendant.

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CASE NO.: 25STCV15001

[TENTATIVE] ORDER DENYING MOTION FOR SUMMARY
JUDGMENT, OR IN THE ALTERNATIVE, SUMMARY ADJUDICATION

Dept. 506

8:30 a.m.

August 27, 2026

On

May 22, 2205, Plaintiff Jose Ortiz filed this action against Defendant General Motors
LLC, arising from his purchase of an allegedly defective vehicle.

On

May 18, 2026, Defendant filed a motion for summary judgment, or in the alternative,
summary adjudication.

DISCUSSION

For

each claim in the complaint, the defendant moving for adjudication must satisfy
the initial burden of proof by showing that one or more elements of a cause of action
cannot be established or that there is a complete defense to a cause of action. (Code Civ. Proc., § 437c, subd. (p)(2); *Scalf*
v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520 (*Scalf*)). Then the burden shifts to the plaintiff to show
that a triable issue of material fact exists as to that cause of action or a defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Scalf*,
supra, 128 Cal.App.4th at p. 1520.) To establish a triable issue of material fact,
the party opposing the motion must produce “substantial responsive evidence.” (*Sangster v. Paetkau* (1998) 68 Cal.App.4th
151, 162-163.)

When

a manufacturer makes an express warranty, the manufacturer or its representative must service or repair the goods to conform to the applicable express warranties after a reasonable number of attempts. (Civ. Code, § 1793.2, subd. (d).) “The statute requires the manufacturer to afford the specified remedies of restitution or replacement if that manufacturer is unable to repair the vehicle ‘after a reasonable number of attempts.’ ‘Attempts’ is plural. The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle.” (*Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1208.)

Defendant’s

motion rests solely on its contention that “[a]fter his purchase on February 22, 2024, Plaintiff presented the Camaro to GM-authorized dealerships three times, but only one of which resulted in a warranty repair.” (Motion at p. 6.) Those presentations were for a rear seat back cover and pad replacement at 410 miles (warranty repair on February 22, 2024); Chevrolet factory maintenance at 1,043 miles (July 11, 2024); and a field action recall campaign at 2,257 miles (March 28, 2025). (*Ibid.*) According to Defendant, “Plaintiff cannot establish a genuine issue of material fact that GM breached any express or implied warranty” because “a single, resolved repair attempt is not a breach under Song-Beverly.” (*Ibid.*)

Assuming

that this satisfies Defendant’s burden, Plaintiff provides evidence of additional repair attempts for warranty concerns: transmission slipping when on the freeway (July 21, 2025); and the check engine light on (March 2, 2026). (Opposition at p. 6; Xie Decl., Exs. 1-2.)

Defendant

cites *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 213 (*Krieger*), for the proposition that Song-Beverly was “designed to give recourse to the buyer of a new automobile that suffers from the same defect repeatedly, or is out of service for cumulative repairs for an extended period.” (Motion at p. 5.) That dicta is located in a discussion of the statutory schemes applicable to purchases of consumer goods and the controlling statutes of limitations. Nothing in *Krieger* otherwise addressed the number of repair attempts required.

The

statute requires the manufacturer “to service or repair a new motor vehicle . .

. to conform to the applicable express warranties after a reasonable number of attempts.” (Civ Code, § 1793.2, subd. (d)(2).)
“A trier of fact might determine that two or three
or more attempts were reasonable under the circumstances of a case or were unreasonable
under those circumstances.” (Silvio v.
Ford Motor Co. (2003) 109 Cal.App.4th 1205, 1209.) Plaintiff provided evidence of at least two attempts
at conforming the vehicle to conform with the warranties. The statute does not state that the same defect
must be serviced or repaired, just that the vehicle be serviced or repaired to conform
to warranties, and the Court cannot conclude that two repair attempts is not enough
as a matter of law. The relevant jury instruction
also states that the repair facility “must have been given at least two opportunities
to fix the [consumer good/new motor vehicle].”
(CACI No. 3202, brackets in original.)
It does not instruct the jury that there must be at least two opportunities
to fix the same defect.

There
is a triable issue of fact regarding Plaintiff’s repair history and whether there
were multiple repair attempts under Song-Beverly.

CONCLUSION

The
motion for summary judgment/adjudication is DENIED.

Moving
party to give notice.

Parties
who intend to submit on this tentative must send an email to the Court at
indicating intention to submit. If all parties
in the case submit on the tentative ruling, no appearances before the Court are
required unless a companion hearing (for example, a Case Management Conference)
is also on calendar.

Dated this 27th day of August 2026

Hon. Thomas D. Long

Judge of the Superior
Court